

as a criminal lunatic or in pursuance of an order made under the Criminal Lunatics Act, 1884, or is undergoing treatment as a temporary patient under section five of the Mental Treatment Act, 1930, or has been placed in an institution or a certified house, or under guardianship, under section three of the Mental Deficiency Act, 1913, or is the subject of an order under section six, eight or nine of that Act, or is under supervision provided under paragraph (b) of section thirty of that Act, or is an inmate of a home approved under section fifty of that Act, or is the subject of a notification under subsection (2) of section fifty-one of that Act.

3. A person certified by a local authority, as defined for the purposes of Part III of the National Assistance Act, 1948, to be registered as a blind person under arrangements made by the authority under section twenty-nine of that Act.

TABLE OF STATUTES REFERRED TO
IN THIS ACT.

Short Title.	Session and Chapter.
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Criminal Lunatics Act, 1884	47 & 48 Vict. c. 64.
Mental Deficiency Act, 1913	3 & 4 Geo. 5. c. 28.
Mental Treatment Act, 1930	20 & 21 Geo. 5. c. 23.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.

CHAPTER 9.

Prize Act, 1948.

ARRANGEMENT OF SECTIONS.

Section.

1. Aggregate amounts of Naval and Marine, and R.A.F., prize payments.
 2. Distribution of Naval and Marine prize payments.
 3. Application of R.A.F. prize payments.
 4. His Majesty's forces to which this Act applies.
 5. Control, audit, etc., of Funds.
 6. Payments to Dominions, and from Dominions and colonies, etc., in respect of prize.
 7. Disposal of certain sums standing to the credit of Prize Deposit Account or prize causes.
 8. Regulation of payments out of and into Prize Deposit Account.
 9. Abolition of future prize money, and of prize bounty.
 10. Short title and definition.
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An Act to make provision as to the payment, and the distribution or application, of any prize money granted by His Majesty out of the proceeds of prize captured in the late war, as to payments and receipts in respect of proceeds of prize to or from the Government or a court of a part of His Majesty's dominions outside the United Kingdom, to extinguish for the future the prerogative rights to make grants of prize money to captors and to grant prize bounty, to authorise the payment into the Exchequer of certain unclaimed sums in prize courts, and for purposes connected with the matters aforesaid.

[16th December 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. If His Majesty is pleased by Proclamation or Order in Council to signify his intention to make a grant of prize money out of the proceeds of prize captured in the late war, there shall be paid out of the Supreme Court Prize Deposit Account—

Aggregate amounts of Naval and Marine, and R.A.F., prize payments.

(a) into a separate fund to be called the Royal Naval Prize Fund, as and when the Treasury and the Admiralty jointly direct (but subject to the provisions of section eight of this Act), the sum of, or sums amounting in the aggregate to, four million pounds ; and

(b) into a separate fund to be called the Royal Air Force Prize Fund, as and when the Treasury and the Air Council jointly direct (but subject to the provisions of section eight of this Act), the sum of, or sums amounting in the aggregate to, one million, two hundred and fifty thousand pounds.

2.—(1) Sums of such respective amounts as His Majesty may by the said Proclamation or Order in Council determine shall be distributed out of the Royal Naval Prize Fund, in such manner as His Majesty may so determine, to such persons who are or have been members of any of His Majesty's naval and marine forces to which this section applies or of the crews to which this section applies of any of His Majesty's ships of war, or in the case of their death to their representatives, as His Majesty may so determine.

Distribution of Naval and Marine prize payments.

(2) Subject to the provisions of this subsection and to the provisions of this Act with respect to the investment of sums standing to the credit of the Royal Naval Prize Fund, the Naval Agency and Distribution Act, 1864, shall, so far as applicable, apply to sums distributable in accordance with the preceding subsection and to the distribution of those sums :

Provided that—

- (a) section seventeen of that Act (which requires forfeited and unclaimed shares and balances of prize money, and a percentage of the proceeds of prize and prize money, to be carried to the naval prize cash balance) shall not apply to sums paid into the Royal Naval Prize Fund or to sums distributable in accordance with the preceding subsection, but any forfeited and unclaimed shares and balances of such sums may be distributed in accordance with the preceding subsection or may be applied for such charitable purposes for the benefit of persons who are or have been members of any of such naval and marine forces or crews as aforesaid or their dependants, or for such other purposes for their welfare, as the Admiralty may determine ; and
 - (b) notwithstanding anything in section nineteen of that Act, no ship's agent shall be entitled to any share in sums distributable in accordance with the preceding subsection.
- (3) Any residue of sums paid into or accruing to the Royal Naval Prize Fund not dealt with in accordance with the preceding provisions of this section shall be applied for such charitable or welfare purposes as are mentioned in the last preceding subsection.

Application
of R.A.F.
prize
payments.

3. Sums paid into or accruing to the Royal Air Force Prize Fund shall, with a view to the application thereof for the benefit of persons who are or have been members of any of His Majesty's air forces to which this section applies or their dependants, be distributed by way of grants to such organisations as the Air Council may determine, being organisations whose functions consist in or comprise the application of funds for charitable purposes for the benefit of such persons as aforesaid or for other purposes for their welfare, of such amounts, and made at such times and in such manner, as the Air Council may determine.

His Majesty's
forces to
which this
Act applies.

4.—(1) The naval and marine forces and crews to which section two of this Act applies, and the air forces to which section three of this Act applies, are respectively naval and marine forces of His Majesty and crews of any of His Majesty's ships of war, and air forces of His Majesty,—

- (a) raised by the Government of the United Kingdom ;
- (b) raised by the Government of a country or territory which is at the commencement of this Act a colony (other than a colony administered by the Government of a Dominion within the meaning of the Statute of Westminster, 1931), a territory under His Majesty's protection, or a territory administered by His Majesty's Government in the United Kingdom under the trusteeship system of the United Nations, or
- (c) raised by the Government of Burma and serving during any period before the third day of September, nineteen hundred and forty-five.

(2) The Admiralty may declare a ship or vessel, whether belonging to His Majesty or not, to have been a ship of war during a specified period or whilst engaged on specified service, and persons who were officers or members of the crew of a ship or vessel to which such a declaration relates during the specified period or whilst it was engaged on the specified service shall be deemed for the purposes of section two of this Act to have been members of His Majesty's naval forces to which that section applies.

(3) Persons who during the late war were members of the Royal Artillery and served as such in any ship or vessel for the purpose of defending it against enemy attack shall be deemed for the purposes of section two of this Act to have been members of His Majesty's naval forces to which that section applies.

5.—(1) The Royal Naval Prize Fund and the Royal Air Force Control, Prize Fund shall be under the control of the Admiralty and of audit, etc., the Air Council respectively, and payments into and out of of Funds. those Funds and all matters relating thereto shall be made and regulated in such manner as the Admiralty or the Air Council, as the case may be, may direct.

(2) Any sum standing to the credit of either of the said Funds may be temporarily invested in such manner as the Treasury may authorise, and interest on an investment made under this subsection of any sum shall accrue to the Fund to the credit of which that sum was standing.

(3) The Admiralty and the Air Council shall as respects each financial year prepare accounts of receipts into and payments out of the Royal Naval Prize Fund and the Royal Air Force Prize Fund respectively in such form and manner as the Treasury may direct.

Accounts prepared under this subsection shall, on or before the thirtieth day of November next following the expiration of the financial year in question, be transmitted to the Comptroller and Auditor General who shall examine and certify the accounts and lay copies thereof together with his reports thereon before Parliament.

6.—(1) There shall be paid out of the Supreme Court Prize Payments to Deposit Account, as and when the Treasury direct (but subject Dominions, and from to the provisions of section eight of this Act), any sum which Dominions and colonies, is certified by the Treasury to be payable by the Government etc., in of the United Kingdom to the Government of a Dominion within respect of the meaning of the Statute of Westminster, 1931, of India, of Pakistan or of Ceylon, under any agreement made between that Government and the Government of the United Kingdom as to prize. the allocation of proceeds of prize captured during the late war.

(2) Any sum received on behalf of the Government of the United Kingdom under any such agreement as aforesaid, or under any agreement as to the allocation of such proceeds as aforesaid made between the Government of the United Kingdom

and the Government of Newfoundland, and any sum which the Treasury direct under section eight of the Colonial Courts of Admiralty Act, 1890, to be so dealt with, shall be paid, as and when the Treasury direct (but subject to the provisions of section eight of this Act), into the Supreme Court Prize Deposit Account.

Disposal
of certain
sums standing
to the credit
of Prize
Deposit
Account or
prize causes.

7.—(1) Sums which at the passing of this Act are standing to the credit of the Supreme Court Prize Deposit Account in respect of ships or goods (within the meaning of the Naval Prize Act, 1864) not then condemned, or are so standing to the credit of a cause instituted in a prize court in any such country or territory as is mentioned in paragraph (b) of subsection (1) of section four of this Act, and which are unclaimed at the latest time for making claims fixed by any advertisement published in relation to the said Account, or in relation to that court, as the case may be, under the next succeeding subsection, shall be paid into the Exchequer at such time thereafter, and in such manner, as the Treasury may direct.

(2) Advertisements for claims shall be published in relation to the said Account and in relation to each such prize court as aforesaid, in such form and manner as may be determined by or under the authority of the President of the Probate Division of the High Court in the case of the said Account, or of the principal judge thereof in the case of each such court, consistently with the following requirements, that is to say—

- (a) that each such advertisement shall fix as the latest time for making claims a time not earlier than the expiration of three months from the publication thereof in the case of the said Account, or six months from the publication thereof in the case of any such court, and
- (b) that the manner of publication of such advertisements shall consist of or include publication in one or more newspapers circulating in the United Kingdom in the case of the said Account or in the country or territory in which the court has jurisdiction in the case of any such court, and also in one or more newspapers circulating in such other countries or territories as the said President or the said principal judge, as the case may be, may direct.

(3) A sum shall be treated for the purposes of this section as unclaimed at a given time if at that time no claim in respect thereof by a party other than the Crown has been filed with the Admiralty Registry in the case of the said Account or with the registry of the court in the case of any such prize court as aforesaid, or if at that time all claims in respect thereof filed as aforesaid before that time have been dismissed or withdrawn.

Regulation of
payments out
of and into
Prize Deposit
Account.

8. The time and manner of any payment under this Act out of or into the Supreme Court Prize Deposit Account shall be determined subject to directions given by the President of the Probate Division of the High Court, or, in his absence, by the senior puisne judge attached to that Division.

9.—(1) The prerogative right to grant Droits of Admiralty or Droits of the Crown or any part or proportion of any such Droits respectively to officers or other persons seizing or taking the same, shall cease to be exercisable in respect of any war in which His Majesty may become engaged after the commencement of this Act.

Abolition of future prize money, and of prize bounty.

(2) The prerogative right to grant prize bounty shall cease to be exercisable, and accordingly sections forty-two to forty-four of the Naval Prize Act, 1864 (which relate to such bounty) are hereby repealed.

10.—(1) This Act may be cited as the Prize Act, 1948.

Short title and definition.

(2) In this Act the expression “ the late war ” means any war in which His Majesty has been engaged at any time between the third day of September, nineteen hundred and thirty-nine, and the second day of September, nineteen hundred and forty-five.

TABLE OF STATUTES REFERRED TO
IN THIS ACT.

Short Title.	Session and Chapter.
Naval Agency and Distribution Act, 1864	27 & 28 Vict. c. 24.
Naval Prize Act, 1864	27 & 28 Vict. c. 25.
Colonial Courts of Admiralty Act, 1890 ...	53 & 54 Vict. c. 27.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.

CHAPTER 10

An Act to authorise the increase of the number of judges of the Court of Session to fifteen, and to amend the law relating to the sessions of that Court, to the appointment of the Lord Ordinary in Exchequer causes and to the office of sheriff substitute..

[16th December 1948.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject as hereinafter provided, the number of judges of the Court of Session shall be increased from thirteen to fifteen :

Number of judges of Court of Session.

Provided that when the number of those judges for the time being in office is not less than thirteen, no vacancy among them shall be filled unless the Secretary of State, with the concurrence of the Treasury, is satisfied that the state of business in the Court requires that the vacancy should be filled.